

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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JOEL RIVERA,

Plaintiff,

**FIRST AMENDED
COMPLAINT**

-against-

THE CITY OF NEW YORK, POLICE DETECTIVE
JOHN PAUL JACCARD (Shield No. 4786), POLICE
OFFICER MICHAEL PARKS (Tax No. 928934),
OFFICERS JOHN DOES 1 through 4, individually and in
their official capacities (the name John Doe being fictitious,
as the true names are presently unknown),

11 CV 4187 (NG) (MDG)

Jury Trial Demanded

Defendants.
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PRELIMINARY STATEMENT

1. This is a civil rights action alleging that the City of New York and several New York City Police Officers violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. Specifically, plaintiff alleges that, on April 13, 2011, defendants falsely arrested him and employed excessive force. Plaintiff seeks compensatory and punitive damages, attorneys' fees and costs, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, Article 1 of the New York Constitution, and New York common law. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343. This Court has supplemental jurisdiction over the New York State claims pursuant to 28 U.S.C. § 1367

3. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391 (b) and (c).

PARTIES

4. Plaintiff is a citizen of the United States and a resident of Brooklyn in the City and State of New York.

5. The City of New York (the “City”) is a municipal corporation organized under the laws of the State of New York.

6. Police Officers John Paul Jaccard is a member of the New York City Police Department who was acting under color of state law and in his capacity as a City law enforcement officer at all relevant times. He is liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. He is sued in their individual and official capacities.

7. Police Officers Michael Parks is a member of the New York City Police Department who was acting under color of state law and in his capacity as a City law enforcement officer at all relevant times. He is liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. He is sued in their individual and official capacities.

8. Police Officers John Does 1-4 (the “officers” or the “Does”) are members of the New York City Police Department who were acting under color of state law and in their capacities as City law enforcement officers at all relevant times. The Does are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

9. On April 13, 2011, at approximately 8:30 p.m., Plaintiff was lawfully present at his home at 278 Lexington Avenue in Brooklyn, New York. Defendant and his brother were inside a hallway in their building. Also present was a third man Harvey Coe, who was not associated with Plaintiff or his brother.

10. A plainclothes police officer appeared and drew his weapon, prompting Coe to flee into his apartment. The officer and a second officer who arrived shortly after prevented Coe from closing his door and eventually gained entry to his apartment.

11. Plaintiff and his brother left the building to visit a store.

12. Plaintiff, his brother and a friend returned to the building to use the bathroom.

13. At this time, Plaintiff again encountered Coe and the defendant officers. One officer told Plaintiff, "Go in your fucking house and mind your own business."

14. Plaintiff complied.

15. Approximately 10 minutes later, Plaintiff left his apartment.

16. Defendant officers grabbed Plaintiff and twisted his arm behind his back, causing extreme pain, in part due to a prior back injury.

17. Defendant asked the officer to loosen his grip, a request which prompted the officer to tighten his grip and say, "Guess what? Now you are getting arrested."

18. Plaintiff was taken to Coe's apartment, where he was searched and verbally abused. Defendant officers called Plaintiff a "a piece of shit" and "stupid."

19. Plaintiff was transported to the 79 Precinct.

20. Plaintiff was transported to Kings County Hospital where he received treatment for the injuries sustained as a result of the incident.

21. Plaintiff was transported to Brooklyn Central Booking, where he was charged with disorderly conduct and obstructing governmental administration.

22. Defendant officers misrepresented to the Kings County District Attorney's Office that Plaintiff had committed the offenses of disorderly conduct and obstructing governmental administration.

23. Plaintiff was arraigned in Kings County Criminal Court at approximately noon on April 14, 2011.

24. At that time, Plaintiff accepted an adjournment in contemplation of dismissal ("ACD") in satisfaction of the charges.

25. Plaintiff was deprived of his liberty, assaulted, battered, suffered emotional distress, mental anguish, pain, fear, anxiety, embarrassment, humiliation, and damage to his reputation.

26. On July 7, 2011, within 90 days of the events set forth above, plaintiff caused to be served on the Comptroller of the City of New York a Notice of Claim. To date, the City has made no adjustment or payment with respect to this Notice of Claim.

27. This action is commenced within one year and 90 days of the events described above.

FIRST CLAIM
(§1983 FALSE ARREST)

28. Plaintiff repeats the foregoing allegations.

29. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

30. Plaintiff was aware of his confinement and did not consent to it.

31. The confinement was not otherwise privileged.

32. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages alleged.

SECOND CLAIM

(STATE LAW FALSE ARREST)

33. Plaintiff repeats the foregoing allegations.

34. Defendants violated the New York State Constitution and the laws of the State of New York because they arrested plaintiff without probable cause.

35. Plaintiff was aware of his confinement and did not consent to it.

36. The confinement was not otherwise privileged.

37. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages alleged.

38. Defendant City of New York, as an employer of the individual Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CLAIM

(§1983 UNREASONABLE FORCE)

39. Plaintiff repeats the foregoing allegations.

40. Defendants violated the Fourth and Fourteenth Amendments because they used a degree of force on Plaintiff that was unreasonable because it was unnecessary under the circumstances.

41. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages alleged.

FOURTH CLAIM

(STATE LAW ASSAULT AND BATTERY)

42. Plaintiff repeats the foregoing allegations.

43. Defendants violated the New York State Constitution and the laws of the State of New York because they arrested, assaulted, and battered plaintiff, employing a degree of force unnecessary and unreasonable under the circumstances.

44. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages alleged.

45. Defendant City of New York, as an employer of the individual Defendant Officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

PRAYER FOR RELIEF

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as the Court may deem just and proper.

DATED: July 20, 2012
New York, New York

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